(4)

No. 01-1196

Supreme Court, U.S.
FILED
- 2 2002
OFFICE OF THE CLERK

In The

Supreme Court of the United States

SIMON BALDERAS, GILBERTO Z. TORRES
and TEXAS LEAGUE OF UNITED
LATIN AMERICAN CITIZENS,

Appellants,

v.

STATE OF TEXAS, ET AL.,

Appellees.

On Appeal From The United States District Court
For The Eastern District Of Texas

REPLY TO MANLEY MOTION TO DISMISS

ANTONIA HERNANDEZ
Counsel of Record for Appellants

NINA PERALES
MEXICAN AMERICAN
LEGAL DEFENSE AND
EDUCATIONAL FUND
140 E. Houston
Suite 300
San Antonio, TX 78205
Ph: (210) 224-5476
FAX: (210) 224-5382

ANTONIA HERNANDEZ
THOMAS A. SAENZ
MEXICAN AMERICAN
LEGAL DEFENSE AND
EDUCATIONAL FUND
634 S. Spring St.
Los Angeles, CA 90014
Ph: (213) 629-2512
FAX: (213) 629-0266

DENISE HULETT
MEXICAN AMERICAN
LEGAL DEFENSE AND
EDUCATIONAL FUND
915 Cole St., #381
San Francisco, CA 94117
Ph: (415) 504-6901
FAX: (415) 504-8901

COCKLE LAW BRIEF PRINTING CO., (800) 225-6964
OR CALL COLLECT (402) 342-2831

21pp

TABLE OF CONTENTS

Page

TABLE OF AUTHORITIES ii

ARGUMENT 1

I. THE DISTRICT COURT DID NOT ADOPT MANLEY'S "EFFECTIVENESS" TEST 3

II. THE DISTRICT COURT DID NOT REJECT PLAINTIFFS' DEMONSTRATION OF EFFECTIVE DISTRICTS 7

III. CONGRESSIONAL DEMOCRATIC INCUMBENTS SEEK TO USE SECTION 2 FOR PARTISAN ENDS 8

TABLE OF AUTHORITIES

Page

FEDERAL CASES

Statewide Reapportionment Advisory Committee v. Theodore, 508 U.S. 968 (1993) 2

Thornburg v. Gingles, 478 U.S. 30 (1986) 1, 2, 3, 4, 7

Valdespino v. Alamo Hts. Independent Sch. District, 168 F.3d 848 (5th Cir. 1999), *cert. denied*, 528 U.S. 1114 (2000) 3

ARGUMENT

Like the State of Texas, appellee Brian Manley moves to affirm summarily the District Court decision rejecting plaintiffs' claims under section 2 of the Voting Rights Act (VRA) on the basis of the single, undefined term "effective" in the court's opinion. The most natural reading of the term is as part of a simple reiteration of the first precondition to Section 2 liability, as established in *Thornburg v. Gingles*, 478 U.S. 30 (1986), yet Manley would instead conjure out of that isolated term a whole series of unstated fact findings and legal conclusions with respect to district "effectiveness."

A review of the District Court decision, its actions, and the evidence it considered proves Manley's conjuration a true phantom. Plaintiffs satisfied every established test for the first *Gingles* precondition, and even produced evidence of practical "effectiveness" as to their proposed Latino voter-majority districts; furthermore, the court's own adopted congressional map refutes any contention that the panel credited the State's and Manley's scant testimony of purported ineffectiveness.

By presenting compact voter-registration Latino majority districts, plaintiffs passed every test that any federal court has ever endorsed to determine the first *Gingles* precondition. The District Court, therefore, quite simply erred in concluding otherwise. While the court's failure to provide adequate findings and conclusions precludes a complete understanding of what test the court did apply, what it did not apply – namely, any established test for the first *Gingles* precondition – is much clearer.[1]

---

[1] Perhaps cognizant of the incompatibility of any "effectiveness" test he urges with the first *Gingles* precondition, Manley also asserts that the District Court applied its "effectiveness" test in ruling on the "totality of the

Moreover, beyond the first *Gingles* precondition, plaintiffs' proposed districts satisfied every conceivable practical test of "effectiveness." In Texas, historically, simple Latino voting-age majorities, not to mention the registered-voter majorities plaintiffs offered, have provided Latinos the opportunity to elect candidates of choice. Plaintiffs bolstered this history, which was undisputed and amply demonstrated at trial, with additional evidence of "effectiveness" in the form of re-aggregated election results. Manley, in contrast, offered "ineffectiveness" evidence of a decidedly different kind.

Manley's attempt to protect the District Court's 32-seat congressional map from plaintiffs' challenge contrasts sharply with his non-opposition to plaintiffs' challenge to the quite similar 31-seat state senate map. The reason lies in the partisan concerns of Democratic Congressmen who intervened in the litigation to protect their incumbency and who now move through Manley only to affirm the District Court's congressional redistricting plan. Plaintiffs' proposed congressional districts have the potential to threaten current members of the Texas Democratic delegation,[2] while plaintiffs' proposed senate districts pose no similar threat. Not surprisingly, then, Manley's effectiveness evidence centers on party indices in plaintiffs' proposed congressional districts.

---

circumstances." However, neither Manley nor the State can cite a single case in which a District Court was allowed to "skip over" the *Gingles* preconditions and arrive at "totality" without findings on majority status, cohesive voting or white bloc voting. This Court's decision to remand a similar case for failure to apply the *Gingles* analysis is directly on point. *See Statewide Reapportionment Advisory Comm. v. Theodore*, 508 U.S. 968 (1993).

[2] For example, the creation of a seventh Latino majority congressional district in South Texas would push the district of Democratic incumbent Charles Stenholm into the Texas Hill Country, an area with many Republican voters.

While such partisan concern in a state where Congressional Democrats are losing ground might be understandable, the Voting Rights Act (VRA) countenances no such parochial interest. Under section 2 of the VRA, the overriding consideration is to remedy minority vote dilution, not to maximize re-election. Yet, Manley's "effectiveness" test would elevate partisan interests over these voting rights. The test would even convert matters long considered evidence of potential vote dilution – such as low minority registration rates or low turnout – into phenomena that block any chance of success in proving dilution – and concomitantly block any chance to address low levels of political participation through a section 2 remedy. Manley would create such a topsy-turvy world, all in service of narrow partisan interests.

This case requires plenary review in order to ensure that such partisan-inspired doctrines did not affect the District Court's largely unexplained decision, and to forestall these attempts in the future.

I. THE DISTRICT COURT DID NOT ADOPT MANLEY'S AND THE STATE'S "EFFECTIVENESS" TEST

Manley, like the State, concedes that the District Court failed to apply any established "majority" test for the first *Gingles* precondition to plaintiffs' proposed districts.[3] Yet, rather than acknowledge that this omission

---

[3] "[T]he District Court did not address the question whether a court should look to voter registration data, voting-age population (VAP) data, or citizen voting-age population (CVAP) data in analyzing *Gingles'* first prong." Manley Motion at 8-9. Of course, the Fifth Circuit had long before answered the question. *See Valdespino v. Alamo Hts. Indep. Sch. Dist*, 168 F.3d 848, 852-53 (5th Cir. 1999), *cert. denied*, 528 U.S. 1114 (2000) ("a bright line test" of greater than 50% citizen voting age population).

represents legal error, Manley and the State seize on the single word "effective" in the court's exceedingly brief section 2 holding to argue that the District Court adopted some unexplained "effectiveness" test and applied it in their favor. The fact that the court's use of "effective" seems to be simply *Gingles* boilerplate, rather than the application of any new "test"under the first precondition, is only the first of the problems with Manley's contention.[4] It is equally unlikely that the court adopted any "effectiveness" contention in cursorily reaching its conclusion as to the "totality of the circumstances."[5]

The District Court's failure to specify which, if any, of plaintiffs' proposed Latino majority districts were insufficiently "effective" eliminates any ability fully to understand and explain what "evidence" of "effectiveness" the court adopted. This, of course, re-emphasizes the importance of the court's failure to provide adequate findings. Still, both the State and Manley seek summary affirmance based on their argument that plaintiffs' proposed Congressional District 23 was "ineffective." However, at trial the District Court heard "effectiveness" arguments with

---

[4] The type of "effectiveness" issue that Manley raises is one for the remedial phase. The registration-majority districts that plaintiffs proposed to satisfy the first precondition are not necessarily what a court would ultimately adopt as a remedy. The threshold first *Gingles* precondition serves a different purpose – making certain that dilution actually poses a potential for harm – that is not consistent with an evaluation of "effectiveness" as Manley uses the term.

[5] As discussed more fully in plaintiffs' reply to the State's Motion to Affirm, the structure of the court's senate decision demonstrates that the court's reference to "effective" can not relate to its "totality" conclusion. While Manley does not seek to affirm the senate decision, the similarities between the congressional and senate districting issues makes the two largely indistinguishable.

respect to the 1990's version of District 23, adopted by the Texas Legislature, and rejected those arguments in crafting its remedial congressional plan. This rebuff precludes Manley's contention that the court adopted his effectiveness views and precludes the State from adopting Manley's effectiveness arguments on appeal.[6]

The trial record demonstrates that Congressional District 23 elected Albert Bustamante in 1984 with a Latino *voting age* population of 51.1 percent. In 1992, hounded by scandal, Representative Bustamante lost to a Latino Republican challenger in a District 23 containing a 58.3 percent Latino voting age population. At trial, Manley characterized District 23 in the 1990's plan as "ineffective," attacked plaintiffs' proposal for District 23 as similarly "ineffective" and urged the District Court to increase the percentage of Democratic voters in the district.

In its remedial plan, the District Court slightly increased the majority of Latino registered voters in District 23 to 53.8% and increased the Republican vote index to 58.3%. Under the Manley analysis, the District Court's addition of Republican voters to the baseline District 23 rendered it even more "ineffective" than the district of the 1990's. The court's decision to increase the Republican vote index of its District 23, while designating its District 23 as one of the "Voting-Rights-Act-protected majority-minority districts" (J.S. App. 5), reveals that the District Court rejected any argument that District 23 required a

---

[6] At trial, the State offered no evidence challenging the effectiveness of any of plaintiffs' proposed Latino majority districts. On the contrary, the State's expert, Dr. John Alford, noted that while plaintiffs' proposed districts narrowed the Democratic partisan margins of some South Texas districts, "I'm not sure that's all that big a problem." Manley App. 17a.

higher Democratic vote index in order to be effective. The District Court's evident conviction that District 23 offered Latino voters the opportunity to elect their candidate of choice with a lower Latino voter majority and higher Republican vote index than that proposed by plaintiffs renders untenable Manley's and the State's claim that the District Court rejected plaintiffs' proposed District 23 as ineffective.

In addition, Manley alone suggests that the District Court found plaintiffs' proposed Congressional District 20 to be insufficiently effective, based on the testimony of Democratic incumbent Charles Gonzalez. Gonzalez testified that "districts with Spanish-surname registration at or just above 50% would not be winnable districts for Latino-preferred candidates" (Manley Motion at 16), but his non-expert testimony was internally inconsistent, as he admitted that Congressional District 20 had elected his father continuously since 1961, long before it achieved a majority of Latino registered voters in 1994. App. 7. Gonzalez further testified that he himself could win re-election in the Congressional District 20 proposed by plaintiffs. Even more revealing was Gonzalez's testimony that the inclusion of more suburbs in plaintiffs' proposed District 20 would force him to work harder to win re-election. Manley App. 8a. But, this self-serving incumbent "comfort" factor is simply not a relevant consideration under the Voting Rights Act.

Manley and the State are unable to point to any evidence in the record or any language in the District Court's decision and remedial plan indicating that the District Court believed that proposed districts containing Latino registered voter majorities would be "ineffective."

II. THE DISTRICT COURT DID NOT REJECT PLAINTIFFS' DEMONSTRATION OF EFFECTIVE DISTRICTS

The seven Latino voter-majority districts proposed by plaintiffs, while reducing the super-majorities that ensued from Latino population growth over the past decade, maintained an effective Latino voting majority and the concomitant ability to elect the Latino candidate of choice in each of the districts.

All of the South Texas congressional and senate districts that plaintiffs proposed contained a majority of Latinos eligible and qualified to go to the polls and cast a vote on election day. This Latino majority of registered voters exceeds both the Fifth Circuit's population threshold for the first *Gingles* precondition (citizen voting age population (CVAP) majority) and, on a practical level, far exceeds the historical threshold for effective Latino voting majorities in Texas.[7]

---

[7] Demographic tables introduced by plaintiffs and the Valdez-Cox intervenors at trial demonstrated that, historically, Latinos have formed effective voting majorities in Texas districts with over 50 percent Latino voting age population, an even lower threshold than CVAP:

Latino Voting Age Population in Congressional Districts Electing a Latino

Congressional District	1980 Census	1990 Census	Plaintiffs' Proposal
District 15	66.1%	69.6%	64.8%
District 16	54.9%	66.4%	74.7%
District 20	55.7%	56.1%	58.0%
District 23	51.1%	58.3%	65.7%
District 27	55.4%	61.4%	66.1%
District 28	none	56.5%	55.6%
District 32	none	none	60.9%

Plaintiffs, having demonstrated more than what *Gingles* requires, were the only party to introduce re-aggregated election results to demonstrate without the slightest doubt the ability of Latino voters to elect their candidate of choice in plaintiffs' proposed districts.[8] Examining racially-contested statewide elections during the 1990's, the plaintiffs showed that the actual votes cast in those elections, in the precincts comprising the plaintiffs' proposed Latino-majority districts, gave victories to Latino-preferred candidates in 1992, 1994 and 1996. Statewide candidates Pete Benavides in 1992, Dan Morales in 1994, and Victor Morales and Hector Uribe in 1996, garnered a majority of the votes cast within each of the proposed congressional districts.

In sum, even assuming that the District Court meant more by including the term "effective" than to reiterate a widely-used description of the first *Gingles* precondition, plaintiffs' proposed districts satisfied any conceivable "effectiveness" standard.[9]

III. CONGRESSIONAL DEMOCRATIC INCUMBENTS SEEK TO USE SECTION 2 FOR PARTISAN ENDS

Rather than any coherent notion of "effectiveness" from the perspective of the Latino community, Manley

---

[8] Manley flatly misstates the record below in asserting that plaintiffs "chose not to introduce any evidence in the congressional portion of the case concerning effectiveness." Manley Motion at 14-15.

[9] Even Dr. Alan Lichtman, upon whom Manley and the congressional Democrats relied, concluded in his expert report that plaintiffs' proposed congressional plan "unpacks District 15, although it is maintained as a fully effective Hispanic district. As a result . . . the alternative plan creates an additional (seventh) Hispanic opportunity district in this region[.]" App. 7. Moreover, at trial, Dr. Lichtman conceded that his own analysis of re-aggregated elections proved that Latino-preferred candidates won the majority of racially-contested elections in all of plaintiffs' proposed districts. App. 6.

urges a radical revision of section 2 that would utilize *Democratic* electoral success as the measure of minority opportunity to elect. This approach to the creation of majority minority districts is not supported by the Court's precedent, stereotypes Latino political views, and limits the creation of Latino-majority districts to the convenience of one political party, even in the face of abundant evidence that Latino voters in those districts would possess the opportunity to elect their candidates of choice.[10]

While disclaiming this partisan agenda, Manley offered no analysis of the low Latino voter turnout that they asserted would render districts ineffective, offered no explanation for their claim that Latino voters in one proposed district would fail to vote at the same rate as Latino voters in the neighboring district, and did not ask their expert to examine how Latino voter turnout might vary within a district. App. 3.

Committed to regaining a majority within the United States House of Representatives, the desire of Democratic incumbents, working through Manley, to maintain the incumbent status quo in states where their party is losing ground is certainly understandable. However, it is not a relevant concern with respect to a Voting Rights Act claim.[11]

---

[10] Congressional Democratic incumbents presented their partisan "effectiveness" analysis through Dr. Lichtman, who testified that: he judged that African American plurality districts that were "substantial Democratic districts" were effective; one aspect of his effectiveness analysis is party label; to evaluate effectiveness of Latino-majority districts, he "always looked at the Democratic performance"; and that sufficient Democratic strength is a factor of his analysis of effectiveness for Latino-majority districts. App. 1.

[11] This does not mean that partisanship is never a relevant concern under the VRA. As suggested above, it may be a relevant concern with respect to remedy, for example, when a

Quite simply, section 2 is not a tool to be manipulated to serve partisan concerns.[12]

Respectfully submitted,

ANTONIA HERNANDEZ
Counsel of Record for Appellants

NINA PERALES
MEXICAN AMERICAN
LEGAL DEFENSE AND
EDUCATIONAL FUND
140 E. Houston
Suite 300
San Antonio, TX 78205
Ph: (210) 224-5476
FAX: (210) 224-5382

DENISE HULETT
MEXICAN AMERICAN
LEGAL DEFENSE AND
EDUCATIONAL FUND
915 Cole St., #381
San Francisco, CA 94117
Ph: (415) 504-6901
FAX: (415) 504-8901

ANTONIA HERNANDEZ
THOMAS A. SAENZ
MEXICAN AMERICAN
LEGAL DEFENSE AND
EDUCATIONAL FUND
634 S. Spring St.
Los Angeles, CA 90014
Ph: (213) 629-2512
FAX: (213) 629-0266

---

court may take into account a minority group's ability to control the outcome of a party primary in a district that heavily favors that party. The critical difference is that, in that circumstance, voting rights concerns motivate the partisan inquiry. Here, by contrast, Manley seeks a regime in which partisan concerns motivate and determine voting rights outcomes.

[12] Similarly, the District Court's preservation of the current district boundaries of six incumbents (including Rep. Charles Stenholm) with "substantial leadership positions in the House" (J.S. App. 8) would be reversible error if the concern trumped plaintiffs' VRA claims.

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL	*	CIVIL ACTION NO.
VS.	*	6:01-CV-158
STATE OF TEXAS, ET AL	*	Austin, Texas

(This Filing Applies to all Actions)

TRANSCRIPT OF BENCH TRIAL
BEFORE
THE HONORABLE PATRICK E. HIGGINBOTHAM,
THE HONORABLE JOHN HANNAH, JR.
AND
THE HONORABLE T. JOHN WARD

* * *

October 23, 2001, Morning Session

[Testimony of Dr. Allen J. Lichtman]

[74] JUDGE HIGGINBOTHAM: What do you characterize as effective district expressed quantitatively a district expressed percentage of Democratic vote or how are you –

A. Yes, I looked at it in several different ways for African-American districts. These districts have an African-American plurality or close to it. In looking at the Overstreet election that was in the Democratic primaries. Mr. Overstreet received 19 percent of the votes statewide. In the districts that I characterize as fully effective African-American districts, he received an outright majority of the vote in the Democratic primary in those districts quantitatively and African-American were the

predominant turnout in the Democratic primary; and finally all of those districts [75] are substantial Democratic districts.

* * *

October 23, 2001, Afternoon Session

[Testimony of Dr. Allen J. Lichtman]

[20] Q. Okay. Now, you use a term and you call that term an "effective district." Can you define for me what an effective district is?

A. Yes. As I defined it in my direct, I said it is somewhere between a toss-up equally competitive district and a safe or a locked district. It's a district that provides at least reasonable opportunities for African-Americans on the one hand or Hispanics on the other hand to elect candidates of their choice.

Q. Okay. An effective district – does the effective district have anything to do with a Democratic or Republican label?

A. That can be part of it.

Q. No, I am asking you from your definition, you used the term, does the effective district relate to party labels?

A. The definition does not; the analysis does.

Q. Okay. So you analysis is based on party label?

A. That is one aspect. It is not the complete analysis.

* * *

[31] Q. In the 23nd Congressional District, a Hispanic has gotten elected five times; is that correct?

A. Yes.

Q. And, in fact, you decided or in your analysis you concluded that Mr. Bonilla was not the choice of the Hispanic community; is that correct?

A. That's what the data shows, yes.

Q. So in that situation, since the choice of the [32] Hispanic community is not realized, then it's not a Hispanic opportunity district, is it?

A. For that and other reasons.

Q. But you don't know any other reasons because you didn't spend any time looking at what the turnout is in northside San Antonio versus Laredo, what the number of registered voters are in San Antonio and versus Laredo versus the turnout, did you?

A. Well, the turnout in the entire election, and that's what the election depends upon. I always looked at the Democratic performance and the performance of the Hispanic Democratic candidates.

Q. But you did not spend anytime looking at the nuances of the district, what is going on northside San Antonio and what is going on Laredo, did you?

A. I did not get into pieces of the district, no.

* * *

[155] Q. With respect to effectiveness, you're not suggesting in your testimony, are you, that the Court go out of it's way specifically to draw a Democratic district in order to meet your standard of effectiveness?

A. I'm not suggesting the Court go out of its way to do anything. I am suggesting that any effective district has do two things: It has to enable a minority candidate of choice to be nominated and it has to enable a minority candidate of choice to be elected to public office. Nomination alone would not satisfy that.

Q. But you do discuss effectiveness in terms of having sufficient Democratic strength, don't you?

A. That is one factor because of the polarized voting that we have observed in general elections.

[156] Q. Isn't the general gist of your testimony that the Court has to consciously draw partisan districts in order to afford the opportunity to elect?

A. No, that is not the gist of my – the Court can draw a balanced map and still provide minorities opportunities to elect candidates of their choice.

Q. You are saying balances overall, but you're telling the Court they have to specifically go out and draw Democratic districts for Latinos, aren't you?

A. I am saying they have to check and see if the Latinos can win in the general election, as well as in the primary, yes. And that would require some attention to the partisan composition of the districts, yes.

Q. You had earlier in your testimony today defined effectiveness as providing a reasonable opportunity to elect a candidate of choice, correct?

A. Yes.

Q. You also stated earlier not every single election has to be won by the Latino candidate of choice in order for the district to provide the opportunity to elect?

A. That's right. There can be exceptional elections.

Q. I'm going to hand out a handout, which is marked Balderas Exhibit 105.

[157] MS. PERALES: And I will beg the Courts' indulgence to follow along as I pass up copies (tendering).

Q. (By Ms. Perales) I am also going to hand out reaggregated election sheets for Plan 1099, which is the backup material for the summary sheet, but all I want to do is go over the summary sheet with you, Dr. Lichtman.

A. I have no problem with working on this summary sheet, Ms. Perales.

Q. I would like to talk about the Latino majority districts that are created in Plan 1099 with you.

A. Yes.

Q. With respect to Congressional District 20, do you observe that Congressional District 20, as it's currently configured the way it has been configured, has risen since 1992 from Spanish surname voter registration of 48.7 to a Spanish surname voter registration of 57.9 in the year 2000?

A. Presuming these numbers are correct, that's right.

* * *

Q. And with respect to the races that are represented in this summary sheet, do you see that the Latino candidates of choice are winning four out of six of these elections?

A. I do.

Q. And, similarly, in the next page with respect to Congressional District 23 as proposed in Plan 1099?

A. Yes. Although, there in the last three elections you have two right at 50 and one loss.

Q. Nevertheless, there are four wins and two losses, correct?

A. That is correct.

Q. And, now, simply with respect to the remaining Districts –

A. Yes.

Q. – 15, 16, 27, 28, and 32, they are all won by the Latino candidates by the Latino candidates of choice –

A. That is correct.

[160] Q. – of those races?

A. That is correct.

* * *

Q. You did state in your report, did you not, that Plan 1099 creates an additional seven Hispanic opportunity districts in South and West Texas region?

A. Yes.

* * *

October 25, Afternoon Session

[Testimony of Congressman Charles Gonzalez]

[128] Q. And back in 1994, your father, may he rest in peace, won reelection to Congress with about 63 percent of the vote; that's correct?

A. I'm not going to debate that. I'm sure it would be somewhere in that number.

Q. I think it was pointed out by Mr. Rios [129] previously, that was when District 20 actually had only 50.1 percent Spanish surname registration?

A. If that's what the figures show, I'm sure that's true.

Q. Something similarly exciting happened in 1996 when your dad won again with 64 percent of the vote when the registration was only 50.7, correct? And then –

A. In '98 I won.

Q. Yes, '98 you won.

A. And the Spanish surname registered voters would be at what, 56?

Q. 56.4. There was really quite a jump from '94 to '96. The Spanish surname registration went up more than five points.

A. Right. Did I win by the same percentage as my father?

Q. Yes.

A. When we had fewer Spanish –

Q. Yes, yes, you did. And then perhaps most exciting in 2000 when the registration was 58 percent, you won your reelection with 88 percent of the vote.

A. I didn't have any opposition –

Q. I understand.

A. – to speak of. I would love to brag, but I [130] didn't –

* * *